

Individuals' rights with regards to their data

The draft bill lists out a host of rights that individuals will have with regards to their data. These include the following:

1. The right to confirmation: Is a company or government department using my data?
2. The right to correction: Correction, completion or updating of inaccurate personal data.
3. The right to portability: As an example, can I force MakeMyTrip to give me my order history data and before giving it to Cleartrip?
4. The right to be forgotten: Can I ask Google to delete a search result about me?

However, the bill does not lay down the golden principle of allowing individuals to be the true owners of their own data. There is no right to erasure, only a limited right to be forgotten. The liability for withdrawal of consent is placed on the individuals in question.

Under data principal rights, the right to confirmation, accession and correction is to be included in the data protection law. The report has set out reasons that the law may not provide the right to data portability (subject to limited exceptions), right to object to processing, right to object to direct marketing, right to object to decisions based on solely automated processing and right to restrict processing.

Data localisation requirement

The Ministry of Telecom believes that data belonging to Indians should reside within the country, and its analysis should not happen overseas. This will help meet the need for personal data of citizens to be in safe hands and ensure data protection. It maintains that data is personal and there is a paramount need for privacy. It is essential that this data is available to Indians and Indian companies.

India needs to look carefully at who has access to people's data, what they can do with it and what returns Indians will get from it. Understanding how other countries are working on their data protection policies will help in forming a blueprint for India.



Data provided to IRCTC should be used only for ticketing purposes (Credit: <http://zeenews.india.com>)

The US has its own data and other peoples' data as well. China has built its digital economy, its search engines and machines on the back of its own data. However, this requirement also creates hurdles for vendors.

The committee has articulated a set of principles to guide data collection and processing so that it is at par with global best practices. The government needs to look at weaving in the recommendations on data privacy by Telecom Regulatory Authority of India (TRAI) to safeguard the interests of the telecom sector.

The draft bill states that all data fiduciaries must ensure the storage of at least one serving copy of personal data, to which this act applies, on a server or data centre located in India. It implies that private companies, which deal with personal data of Indian citizens, will have to store a copy of that data in India. This will have significant consequences for MNCs who store data of their Indian users primarily in a foreign country.

Additionally, the bill lays out that the DPA must decide if data breaches are to be disclosed to affected users. Currently, Indian companies and government agencies are quite lax about security standards. Affected users must have a legal right to know if their data has been compromised, as is the practice followed in developed countries.

The draft bill lays down rules on how companies and the government should be treated if they are found to have committed offences under the act—two primary offences being obtaining/selling of data contrary to the act, and re-identification and processing of de-identified data.

While at present, government departments are being let off lightly

for leaking personal data, the draft bill notes that if any offence is committed by a department of the Central or a state government, the head of the department or authority shall be deemed to be guilty. This will ensure that the blame is not passed off onto a lower-level government officer.

Protection provided to individuals

The bill provides individuals new protections to control what data about them is collected, stored and processed. Companies and the government can no longer collect, store and use personal data with impunity. One feature that will change is the way in which consent is obtained by websites visited. On these websites, the terms and conditions for rendering online services are quite convoluted and confusing. Even if the user chooses Agree, the company cannot argue that it is shielded from liability, just because it sought consent.

Such legalese will be rendered as violating the bill's requirement that consent be clear, specific and informed. Even when an individual consents, and irrespective of what he or she consents to, both companies and the government will not be free to do as they like with the individual's data. They must have a specific purpose for processing it, and they will be allowed to collect only the data necessary for that purpose (this is a collection limitation).

They cannot use or share it for purposes beyond what is necessary for the service (purpose limitation) either. For example, Torchlight app cannot ask for an individual's location data. Even the government is required to demonstrate that any processing of biometric data is strictly necessary. In general, they are required to delete the individual's data when it is no longer necessary to satisfy the purpose for which it has been collected and processed.

Similarly, the government is required to ensure that data is up to date to provide people a service they are entitled to. Under the bill, entities are required to ensure quality of data, so that individuals are not disadvan-